

Amendment No. 2 to HB2111

Hicks G
Signature of Sponsor

AMEND Senate Bill No. 2531

House Bill No. 2111*

by deleting all language after the enacting clause and substituting:

SECTION 1. Tennessee Code Annotated, Title 41, Chapter 1, is amended by adding the following as a new part:

41-1-301. Part definitions.

As used in this part:

(1) "Board" means the state families of incarcerated individuals advisory board;

(2) "Contractor" means an entity, public or private, entering a contractual agreement with the commissioner of correction or a political subdivision of this state to provide correctional services, as defined in § 41-24-102(2)(F), to inmates under the custody of the department;

(3) "Department" means the department of correction; and

(4) "Family member" means a grandparent, parent, sibling, spouse or domestic partner, child, aunt, uncle, cousin, niece, nephew, grandchild, or another person related to an individual by blood, adoption, marriage, or a fostering relationship.

41-1-302. State families of incarcerated individuals advisory board established – Board composition – Initial appointments – Removal of members.

(a) There is created the state families of incarcerated individuals advisory board.

(b) The board is autonomous in structure and has the authority to perform all administrative functions necessary to carry out its duties, including the submission of

budget requests to the commissioner of finance and administration and the submission of personnel actions to the commissioner of human resources. In all respects, the board is separate functionally and administratively from any other agency. In performing the administrative and financial functions necessary to its operations, the board and its employees are subject to the budgetary, accounting, personnel, purchasing, and audit requirements, as well as other administrative requirements, applicable to all state departments and agencies pursuant to title 4, chapters 3 and 4.

(c)

(1) The board is composed of nine (9) members who, at the time of appointment, are family members of individuals currently incarcerated in this state.

(2) The members must be appointed by the governor, the speaker of the senate, and the speaker of the house of representatives as follows:

(A) Three (3) members of the board must be appointed by the governor;

(B) Three (3) members of the board must be appointed by the speaker of the senate; and

(C) Three (3) members of the board must be appointed by the speaker of the house.

(3) The appointing authorities in subdivision (c)(2) shall appoint one (1) member from each grand division in this state.

(d)

(1) In making the initial appointments under this section:

(A) The speaker of the senate shall appoint one (1) member to a term expiring on January 1, 2030; one (1) member to a term expiring on January 1, 2029; and one (1) member to a term expiring on January 1, 2028;

(B) The speaker of the house of representatives shall appoint one (1) member to a term expiring on January 1, 2030; one (1) member to a term expiring on January 1, 2029; and one (1) member to a term expiring on January 1, 2028; and

(C) The governor shall appoint one (1) member to a term expiring on January 1, 2030; one (1) member to a term expiring on January 1, 2029; and one (1) member to a term expiring on January 1, 2028.

(2) Following the expiration of initial terms under subdivisions (d)(1)(A)-(C), all members shall serve three-year terms that begin on January 1 and end on December 31 of each applicable year.

(3) Members of the board are eligible for reappointment.

(e)

(1) Vacancies occurring on the board before the expiration of a term by reason of death, resignation, removal, or another reason must be filled in the same manner as the regular appointment for the remainder of the unexpired term.

(2) An appointed member of the board serves in such capacity until the expiration of the term to which the member was appointed and until the member's successor is duly appointed and qualified.

(f) The governor and the speakers of the senate and house of representatives may remove a member of the board whom the respective appointing authority appointed for cause.

(g) The members of the board shall elect one (1) member of the board to serve as the chair for a term of one (1) year beginning January 1 of the appropriate year. The chair shall direct the operation of the board and shall fulfill the functions established by statute, unless duties and responsibilities are otherwise assigned under this part. The board may designate one (1) of its members to act as chair during the absence or

incapacity of the chair, and when so acting, the member so designated has and performs all the powers and duties of the chair of the board.

41-1-303. Power and authority of the board.

The board shall:

- (1) Foster effective communication between the department and family members;
- (2) Strengthen efforts for family reunification;
- (3) Build stronger families and communities upon reentry; and
- (4) Provide feedback on relevant activities within the department.

41-1-304. Board meetings – Quorum of members – Reimbursement for travel.

(a)

(1) The chair of the corrections subcommittee of the state and local government committee of the senate shall call the first meeting of the board.

(2) The board shall meet at least quarterly at a time and place prescribed by the board.

(3) At each regular meeting of the board, the board shall reserve time for family members and the public to provide comments. These meetings must not be held in the same grand division.

(b) The board must take all votes by public ballot or public roll call. Secret ballots or secret roll calls are not permitted.

(c) A majority of members of the board constitutes a quorum for official administrative business.

(d) Members of the board serve without compensation; however, the members of the board must be reimbursed for reasonable and necessary travel expenses in accordance with the state comprehensive travel regulations when engaging in the board's business.

41-1-305. Cooperation with the board.

The department, a contractor, and all officers and employees of the department and contractor shall at all times cooperate with the board to enable the board to fulfill its duties under this part.

SECTION 2. Tennessee Code Annotated, Section 4-29-249(a), is amended by inserting the following as a new subdivision:

() State families of incarcerated individuals advisory board, created by § 41-1-302;

SECTION 3. The headings to sections in this act are for reference purposes only and do not constitute a part of the law enacted by this act. However, the Tennessee Code Commission is requested to include the headings in any compilation or publication containing this act.

SECTION 4. This act takes effect July 1, 2026, the public welfare requiring it.